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Theoretical Underpinnings: Autonomy, Testamentary Freedom and Post-Mortem Privacy

This chapter examines the primary underpinning value of the book, namely autonomy, and its relationship with the concept of post-mortem privacy. This analysis will be relevant to the case studies of emails and social networks due to the prevalence of personal data and privacy issues in these digital assets. The analysis can also apply to any other highly personal digital asset, any aspect of digital legacy and remains that intrinsically relates to what we consider our ‘self’, who we are, or, as Floridi puts it, our ‘informational body’.¹ The issue of post-mortem privacy is less relevant to games and virtual worlds since players usually take up imaginary identities and do not share their personal data and the real-life identities therein. It is also less relevant to highly monetary assets, such as virtual currencies.

In my earlier work, I have set up foundations for the theory and law of post-mortem and, later, postmortal privacy.² The discussion in this chapter will consolidate these foundations and deepen the analysis of all the relevant concepts, including autonomy, privacy and data protection.

¹ L. Floridi, ‘Distributed morality in an information society’ (2013) 19(3) *Science and Engineering Ethics* 727; L. Floridi, *The Ethics of Information* (Oxford University Press 2013); L. Floridi, *The Fourth Revolution: How the Infosphere Is Reshaping Human Reality* (Oxford University Press 2014).

² L. Edwards and E. Harbinja, ‘Protecting post-mortem privacy: Reconsidering the privacy interests of the deceased in a digital world’ (2013) 32(1) *Cardozo Arts & Entertainment Law Journal* 101; E. Harbinja, ‘Does the EU data protection regime protect post-mortem privacy and what could be the potential alternatives?’ (2013) 10:1 *SCRIPTed* 19; E. Harbinja, ‘Post-mortem privacy 2.0: Theory, law and technology’ (2017) 31 *International Review of Law, Computers & Technology* 26; E. Harbinja, ‘The “new(ish)” property, informational bodies, and postmortality’ in M. Savin-Baden and V. Mason-Robbie (eds), *Digital Afterlife: Death Matters in a Digital Age* (Taylor & Francis 2020) 89–106.

As discussed in Chapter 1, various stakeholders are concerned with the issues and the analysis in this book (users, families, service providers, friends, society). When considering choices amongst their interests, both doctrinal law and theoretical justifications for recognising the property status of digital assets do not always give a clear answer. I thus take a normative stance and promote the user's interests over their family or intermediaries in this instance. The reason is that autonomy is asserted as the key concept driving the development of the law in this area, as seen in the discovery of post-mortem privacy. Simultaneously, the technology market has a clear drive to provide such autonomy via Google Inactive Account Manager or Facebook Legacy Contact. Furthermore, the US Uniform Law Commission work in the area and some data protection statutes in Europe illustrate a significant policy drive towards greater recognition of post-mortem privacy.

I contend that if one of the digital assets analysed in the subsequent chapters can be considered property, then the answer is clear, and they do transmit on death. Conversely, if this conclusion cannot be established, then the user's interests and autonomy might not be met. In such circumstances, reform of the law might be required. Ideally, this reform will advance post-mortem control and steps to foster user choice and autonomy. Consequently, each of the assets will be analysed against the background set out in the previous chapter and here, and if an asset does not meet doctrinal and normative aspects of property, then I will aim to identify whether post-mortem privacy could be used as a tool to enable protection, user choice and control over these assets.

The book bases its findings and reform proposals on the proposition that user autonomy and privacy online should be recognised and strengthened. In particular, the suggested code-law-market solutions and the concept of post-mortem privacy have their firm grounding in autonomy.

Post-mortem privacy (PMP) builds on the conception of privacy as an aspect of one's autonomy. The proposition is that autonomy should, in principle, transcend death and allow individuals to control their privacy/identity/personal data post-mortem. PMP is a more recent phenomenon in legal scholarship, and, therefore, we will discuss it from a doctrinal point of view as well, as opposed to the primarily theoretical analysis in the earlier chapter. This approach will enable a holistic conceptualisation of PMP, encompassing its theoretical underpinnings (i.e. autonomy) and doctrinal arguments (i.e. the protection of personal data, testamentary freedom) for its legal recognition.³ This is the starting point of the theory. It will later be developed

³ Harbinja, 'Post-mortem privacy 2.0' (n 2).

using additional philosophical, sociological and legal arguments to evolve into what I have earlier called ‘postmortal privacy’. This phenomenon helps explain some of the more recent technological developments, including the creation and sharing of deepfakes and chatbots of the deceased.⁴

PMP, rights of privacy for the dead, is not a recognised term of art or category in succession law or privacy literature. Edwards and Harbinja conceptualise it as ‘the right of a person to preserve and control what becomes of his or her reputation, dignity, integrity, secrets or memory after death’.⁵ PMP is a recognised phenomenon in psychology, counselling, anthropology, and other humanities and social sciences. However, as noted by Edwards and Harbinja, the notion has received little if any attention from legal scholarship.⁶ Edwards, Harbinja and McCallig⁷ argue that it is an appropriate topic of public and scholarly legal concern, ‘particularly due to the growth in creation, sharing and acquisition of *digital assets* which often have a peculiarly personal and intimate character, and also happen to be voluminous, shareable, hard to destroy and difficult to categorise under current legal norms of property rights’.⁸

To set the foundations for the analysis, we will first briefly look at the most significant theories of autonomy. These theories will be subsequently discussed in relation to the conceptions of privacy, with the primary aim of restating the link between the two concepts and then relating it to the notion of post-mortem privacy. It is argued here and throughout the book that autonomy should be further extended on death, *inter alia*, in the form of post-mortem privacy. The analogy drawn to support this argument is that of testamentary freedom. This concept implies extending a person’s autonomy on death by disposing of their property through a will.⁹

3.1 A Brief Conceptualisation of Autonomy

Autonomy, like property, is difficult to define, and it takes various meanings and conceptions based on different philosophical, ethical, legal and other

⁴ E Harbinja, L Edwards and M McVey, ‘Chatbots that resurrect the dead: Legal experts weigh in on “disturbing” technology’ *The Conversation* (1 March 2021) <<https://www.the-conversation.com/chatbots-that-resurrect-the-dead-legal-experts-weigh-in-on-disturbing-technology-155436>> last accessed 1 August 2021.

⁵ Edwards and Harbinja, ‘Protecting post-mortem privacy’ (n 2) 103.

⁶ Ibid.

⁷ D McCallig, ‘Private but eventually public: Why copyright in unpublished works matters in the digital age’ (2013) 10:1 *SCRIPTed* 39, 43–4.

⁸ Edwards and Harbinja, ‘Protecting post-mortem privacy’ (n 2) 103–4 (original emphasis).

⁹ Harbinja, ‘Post-mortem privacy 2.0’ (n 2).

theories.¹⁰ The theories of autonomy draw both from deist and secular ethical stances, will and interest theories of rights, natural law and its opposing views, explaining autonomy in relation to liberty, dignity, self-realisation, social contract, public interest and moral.¹¹ We will look at the conceptions of autonomy briefly and to the extent that this discussion can subsequently be utilised in the privacy and post-mortem privacy analysis later in the chapter.

The etymology of autonomy is based on the Greek words *autos* (self) and *nomos* (rule or law).¹² A definition similar to the linguistic meaning of the term has been offered by Raz, who maintains that 'The ideal of autonomy is that of the autonomous life . . . to be maker or author of [one's] own life',¹³ or Rao, who argues that autonomy 'evokes images of self-rule, self-determination, and self-sovereignty'.¹⁴

Most classical thinkers explore this concept, relating it to freedom, ethics, personhood, dignity and other values. This book focuses on personal autonomy and not on 'moral autonomy', as used in Kant's work and Kantian scholarship. However, it is still necessary to refer to Kant's theory first, as his discussion of autonomy is one of the most comprehensive and influential of all times.¹⁵

Kantian autonomy is closely linked to ethics and represents the revolutionary thinking of Western morality in the eighteenth century. His theory is still highly influential and provides a focal point for contemporary scholarly discussions on ethics.¹⁶ Kant's morality is based on self-governance and autonomy. According to Kant, human beings are rational, autonomous and self-governing, and they themselves legislate moral law.¹⁷ This action by their will is a precondition for their obedience of the moral law.¹⁸ For Kant, 'Whatever will is to be good if it is taken universally and reciprocally must not cancel

¹⁰ See for example RH Fallon Jr., 'Two senses of autonomy' (1994) 46 *Stanford Law Review* 875, 876; R Rao, 'Property, privacy, and the human body' (2000) 80 *Boston University Law Review* 359, 360.

¹¹ For a useful commentary on the development of autonomy, see JB Schneewind, *The Invention of Autonomy: A History of Modern Moral Philosophy* (Cambridge University Press 1998).

¹² G Dworkin, *The Theory and Practice of Autonomy* (Cambridge University Press 1988) 12.

¹³ J Raz, *The Morality of Freedom* (Clarendon Press 1986) 372.

¹⁴ Rao (n 10) 360.

¹⁵ See Schneewind (n 11) 550–5.

¹⁶ Ibid. 3–11.

¹⁷ I Kant, *Observations on the Feeling of the Beautiful and the Sublime*, trans. JT Goldthwait (2nd edn, University of California Press 2003) 31.10, 25.14.

¹⁸ Ibid.

itself.¹⁹ Kant also discussed the relationship between the individual and the general public will, arguing that an action is morally just if it arises from the general will.²⁰ Furthermore, when explaining the relationships between these two wills, he refers to inner perfection that stems from ‘the subordination of the totality of powers and sensibilities under the free will’.²¹ He concludes with a sentence that sums up the relationship: ‘This will contains both the merely private and the general will or man observes himself immediately in consensus with the general will.’²²

In his later work, Kant refines his theory and introduces two principles: *Rechtspflichten* – governing duties of law, and *Tugendpflichten* – governing duties of virtue or morality. The first principle mandates that human beings act externally only to allow ‘the freedom of the will of each to coexist together with the freedom of everyone in accordance with a universal law’.²³ The second principle means that we are to ‘act according to a maxim of *ends* which it can be a universal law for everyone to have’ and these ends are our perfection and happiness of others. This principle is also known as Kant’s categorical imperative.²⁴ Finally, Kant believes that acts to which someone has a right may be obtained by compulsion, whereas the adoption of ends and virtue must result from free choice.²⁵

The work of thinkers that was explored in the discussions on the theories of property will also be looked at from the perspective of their conceptions of autonomy. Like Kant, John Locke engages in contemplating morals and free will. According to him, the will is the power of deciding on an action, and our will engages only when we think there is good or bad at stake.²⁶ Willing to him is ‘preferring an Action to its absence’.²⁷ Bentham also talks about will and autonomy in the context of his utilitarian writing on the greatest happiness principle, explored in the previous chapter in the context of property. According to Bentham, we must overcome a divergence between duty and interest by our actions. This means that we will pursue morally sound goals if legislation clarifies that it is in our own interest.²⁸

¹⁹ Ibid. 67.5, 53.1.

²⁰ Ibid. 154.4, 116.1.

²¹ Ibid. 145.16, 116.19.

²² Ibid.

²³ I Kant, *The Metaphysics of Morals*, trans. M Gregor (Cambridge 1991) 6.230, 56.

²⁴ Ibid. 6.395, 198 (original emphasis).

²⁵ Ibid. 6.381, 186.

²⁶ J Locke, *An Essay Concerning Human Understanding*, ed. P Nidditch (Oxford 1979) II.XXI. 31–8, 250–6.

²⁷ Ibid. II.XXI. 21, 244.

²⁸ J Bentham, *A Fragment on Government*, ed. W Harrison (Oxford 1948) X.5–7, 10; VII.1.

As noted in Chapter 2, some theories of property refer to autonomy and free will in their attempt to justify the concept of property. Hegel, for instance, understands property as an extension of personality and one's free will.²⁹ For him, property is 'the relation of personality to the external sphere of things, understood in terms of the free will'.³⁰ Also, 'A person must translate his freedom into an external sphere in order to exist as an idea.'³¹ Further, free will in every stage of development is embodied in something externalised, and since things have no will, there is an absolute right of appropriation. Therefore, a person with a will has a right to appropriate and determine the use of a thing that is considered as not having a will.³² Similarly, Radin classifies property as fungible and personal, arguing that property is an essential vehicle for personality development.³³ Radin bases these arguments on the notion of the autonomous self and individual development, that is, autonomy.³⁴

Contemporary legal scholars use the notion of autonomy based on the classical concept of liberty.³⁵ Therefore, autonomy can be based on John Stuart Mill's theory as expressed, for instance, in his classical work *On Liberty*, where Mill argues:

the only freedom which deserves the name is that of pursuing our own good in our own way . . . Each is the proper guardian of his own health, whether bodily or mental and spiritual. Mankind are greater gainers by suffering each other to live as seems good to themselves than by compelling each to live as seems good to the rest.³⁶

Raz and Rawls follow this line of argument and emphasise the individual as the author of his own life, including a degree of control and leading to happiness and good life.³⁷ For Raz, an autonomous person is one who 'is a (part)

²⁹ GWF Hegel, *The Philosophy of Right*, trans. TM Knox (Oxford University Press 1967), or for a sound elaboration and critique, see J Penner, *The Idea of Property in Law* (Oxford University Press 1997) 169–86.

³⁰ See Penner (n 29) 173.

³¹ Hegel (n 29) para 41.

³² Penner (n 29) 174. For more, see GS Alexander and EM Peñalver, *An Introduction to Property Theory* (Cambridge University Press 2012) 59–61.

³³ MJ Radin, 'Property and personhood' (1982) 34 *Stanford Law Review* 957.

³⁴ See Alexander and Peñalver (n 32) 69.

³⁵ JP Safranek and S Safranek, 'Can the right to autonomy be resuscitated after Glucksberg?' (1998) 69 *University of Colorado Law Review* 737, 738. See also P Bernal, *Internet Privacy Rights: Rights to Protect Autonomy* (Cambridge University Press 2014) 30.

³⁶ JS Mill, *On Liberty*, ed. G Himmelfarb (Penguin 1984) 72.

³⁷ Raz (n 13) 369; J Rawls and SR Freeman, *Collected Papers* (Harvard University Press 1999) 365.

author of his own life'³⁸ and autonomy is a 'constituent element of the good life'.³⁹

Therefore, many classical and contemporary Western philosophers and social theorists consider autonomy one of the central values and the basis of their ethical and social theories. This book builds on the literature and further explores the relationship between autonomy and privacy to justify its normative stance and solutions proposed in the concluding chapter. The conceptions of autonomy used to underpin the arguments of this book are those of personal autonomy as explained in the works of Hegel, Mill, Bentham, Raz, Rawls, Rao et al. The reason for this is that the individual, the user, is the main focal point of this book, and their interests are to be advanced in the first place, notwithstanding the potentially conflicting public interest to which we return in the final chapter.

3.2 Autonomy and Privacy

Many authors consider autonomy and privacy inseparable and use autonomy as a building block of the conceptions and definitions of privacy. Ortiz, for instance, argues that privacy defines 'the scope and limits of individual autonomy'⁴⁰ and links privacy to property. Property includes autonomy as dominion over things and the physical sphere, whereas privacy represents dominion over oneself.⁴¹ Henkin has offered a similar view,⁴² which is closely related to Radin's theory of property and personhood, discussed in Chapter 2 and mentioned above. A rich scholarship on privacy, autonomy, dignity and personhood makes similar links and interrelations.⁴³ Recent UK privacy scholarship follows a similar line of argument as well. Bernal, for instance, maintains that 'privacy is a crucial protector of autonomy',⁴⁴ basing his approach on Raz's and Rawls's conceptions of autonomy.⁴⁵

³⁸ Raz (n 13) 369.

³⁹ Ibid. 408.

⁴⁰ DR Ortiz, 'Privacy, autonomy, and consent' (1988) 12 *Harvard Journal of Law and Public Policy* 21, 92.

⁴¹ Ibid.

⁴² L Henkin, 'Privacy and autonomy' (1974) 74 *Columbia Law Review* 1410, 1425.

⁴³ AJ Rappaport, 'Beyond personhood and autonomy: Moral theory and the premises of privacy' (2001) *Utah Law Review* 441, 443; J Feinberg, 'Autonomy, sovereignty, and privacy: Moral ideals in the Constitution?' (1983) 58 *Notre Dame Law Review* 445, 483; RM Smith, 'The constitution and autonomy' (1982) 60 *Texas Law Review* 175; Henkin (n 42). 1425; GR Nichol, 'Children of distant fathers: Sketching an ethos of constitutional liberty' (1985) *Wisconsin Law Review* 1305, 1309.

⁴⁴ Bernal (n 35) 9.

⁴⁵ Ibid.

Some of the most prominent US privacy theorists, such as Nissenbaum⁴⁶ and Solove,⁴⁷ also discuss the relationship between privacy and autonomy, setting the discussion in the digital environment. For Nissenbaum, privacy is an aspect of autonomy over one's person and privacy that frees us from the 'stultifying effects of scrutiny and approbation (or disapprobation)', contributing to an environment that supports the 'development and exercise of autonomy and freedom in thought and action'.⁴⁸ Nissenbaum further asserts that privacy is essential for making effective choices and following them through, which is an essential aspect of autonomy understood as explained in the above section.⁴⁹ Eventually, therefore, privacy is about control, as much as autonomy and property are.⁵⁰ Similarly, Rosen adopts an even more radical 'privacy as negative liberty' stance.⁵¹

Cohen, on the other hand, offers a critique of this liberal conception of the autonomous self, noting the post-modernist critique or social constructivism and calling for a more nuanced theoretical account of privacy 'in a world where social shaping is everywhere, and liberty is always a matter of degree'.⁵² Cohen criticises these approaches fiercely in some of her more recent works, too.⁵³ Schwartz belongs to the group of scholars who see privacy in a positive liberty manner, arguing that there should be constraints on day-to-day autonomy and privacy so that one's capabilities can be developed and one can make better long-term choices.⁵⁴ This is known as the 'constitutive privacy' school of thought, which recognises autonomy as the core of privacy and requires external enablement and protection because of the societal influences on the core of the autonomous self.⁵⁵ In addition, scholars put collective and communitarian interests, welfare and security before individual autonomy and

⁴⁶ HF Nissenbaum, *Privacy in Context: Technology, Policy, and the Integrity of Social Life* (Stanford Law Books 2010) 2.

⁴⁷ DJ Solove, "I've got nothing to hide" and other misunderstandings of privacy' (2007) *San Diego Law Review* 744, 745–72.

⁴⁸ Nissenbaum (n 46) 83.

⁴⁹ Ibid. 82–3.

⁵⁰ See also Bernal (n 35) 35.

⁵¹ J Rosen, *The Unwanted Gaze: The Destruction of Privacy in America* (Vintage 2001) 166.

⁵² JE Cohen, *Configuring the Networked Self: Law, Code, and the Play of Everyday Practice* (Yale University Press 2012) 7.

⁵³ JE Cohen, *Between Truth and Power: The Legal Constructions of Informational Capitalism* (Oxford University Press 2019).

⁵⁴ PM Schwartz, 'Privacy and democracy in cyberspace' (1999) 52 *Vanderbilt Law Review* 1609, 1660–2.

⁵⁵ AL Allen, 'Coercing privacy' (1999) 40 *William & Mary Law Review* 723; LE Cohen, 'Examined lives' (2000) 52 *Stanford Law Review* 1373; Schwartz (n 54).

privacy.⁵⁶ Regan, Rao, and Bennett and Raab argue that privacy promotes equality, while Solove maintains that privacy serves multiple individual and collective purposes bound up with everyday experience.⁵⁷

Based on these conceptions of privacy as an extension of autonomy, Bernal has proposed the concept of Internet privacy rights, restating their grounding in autonomy:

To protect our autonomy, to have influence over what happens to us online, over what we see online, over what decisions are made about us and for us, we need to have protection over our data online. That means protection over how data is gathered about us, how that data is used, who can hold that data and so forth.⁵⁸

To achieve this, *inter alia*, Bernal supports the concept of the right to delete, as opposed to the right to be forgotten online. For Bernal,

The essence of the right to delete personal data is a simple one: that the default position should be that people are able to have their personal data deleted. Specifically, rather than making the person who wishes their data to be deleted justify that deletion, those wishing to continue to hold that data should need to justify that holding.⁵⁹

Bernal also introduces exceptions to reconcile the right to delete with free speech, security, and other individual and public interests.⁶⁰ His conception of Internet privacy rights essentially relates to informational privacy, which is one of the most significant aspects of digital privacy. Solutions put forward in the concluding chapter of this book build on Bernal's suggestions and extend the right to delete post-mortem, notwithstanding the post-mortem privacy interests discussed further in the following section.

⁵⁶ For the communitarian argument, see A Etzioni, *The Limits of Privacy* (Basic Books 2000). For the argument from a security perspective, see RA Posner, 'Privacy, surveillance, and law' (2008) 75 *University of Chicago Law Review* 245.

⁵⁷ See CJ Bennett and CD Raab, *The Governance of Privacy: Policy Instruments in Global Perspective* (MIT Press 2006); RC Post, 'The social foundations of privacy: Community and self in the common law tort' (1989) 77 *California Law Review* 957; P Regan, *Legislating Privacy: Technology, Social Values, and Public Policy* (University of North Carolina Press 1995); DJ Solove, *Understanding Privacy* (Harvard University Press 2008).

⁵⁸ Bernal (n 35) 15.

⁵⁹ Ibid. 18.

⁶⁰ Ibid. 19.

3.2 Post-Mortem Privacy

(a) *Early Theory: Testamentary Freedom and PMP*

The conception of post-mortem privacy was established in my earlier research. It means that autonomy should, in principle, transcend death, allowing individuals to control their privacy/identity/personal data post-mortem, analogous to their post-mortem control of property through the concept of testamentary freedom.⁶¹

Legal families do not share an understanding of the meaning and limits of testamentary freedom. In comparative academic discussions on succession laws, it is common knowledge that freedom of testation as a concept is much more limited in the civilian systems than in common law countries.

The practically unlimited freedom of testation is considered inviolable in common law,⁶² stemming from liberal, *laissez-faire* economic and social thought revolving around liberty and autonomy, which were explored in the section above.⁶³ Examples of thinkers who explicitly support freedom of testation include Bentham, Mill and Locke.⁶⁴ Blackstone, for instance, maintains that wills are ‘necessary for the peace of society’ and testamentary freedom is a ‘principle of liberty’.⁶⁵ It has been said that testamentary freedom ‘crystallised eighteenth-century liberal thinking in relation to property’ and was seen as ‘a means of self-fulfilment’.⁶⁶ Case law has developed similar stances.

⁶¹ Harbinja, ‘Post-mortem privacy 2.0’ (n 2).

⁶² RF Atherton and P Vines, *Australian Succession Law: Commentary and Materials* (Butterworths 1996) 34.

⁶³ See for example F du Toit, ‘The limits imposed upon freedom of testation by the boni mores: lessons from common law and civil law (continental) legal systems’ (2000) *Stellenbosch Law Review* 358, 360; MJ de Waal, ‘A comparative overview’ in KGC Reid, MJ de Waal and R Zimmermann (eds), *Exploring the Law of Succession: Studies National, Historical and Comparative* (Edinburgh University Press 2007) 1–27, 14.

⁶⁴ John Locke regarded the power of bequest as part of paternal authority. See J Locke, *Two Treatises of Government*, ed. T Cook (Hafner 1947) ‘Second treatise’ 156. Mill maintained that ‘each person should have power to dispose by will of his or her whole property’. See JS Mill, *Principles of Political Economy* (8th edn, Longmans, Green, Reader and Dyer 1878) 281. In his ‘Principles of the Civil Code’, Bentham asserted, ‘The power of making a will . . . may . . . be considered as an instrument of authority, confided to individuals, for the encouragement of virtue and the repression of vice in the bosom of families.’ See J Bentham, ‘Principles of the civil code’ in *The Works of Jeremy Bentham*, ed. J Bowring (William Tait 1843) Vol 1, 337.

⁶⁵ W Blackstone, *Commentaries on the Laws of England* (1765–1769) (18th edn, S. Sweet etc. 1829) Book II 489, 437–8.

⁶⁶ R Atherton, ‘Expectation without right: Testamentary freedom and the position of women in nineteenth century New South Wales’ (1988) 11 *University of New South Wales Law Journal* 133, 134.

For instance, Cockburn CJ observed in the 1870 case of *Banks v Goodfellow*, 'The law of every civilised people concedes to the owner of property the right of determining by his last will, either in whole or in part, to whom the effects, which he leaves behind him shall pass.'⁶⁷

In civilian countries, this principle is considerably limited by the notion of forced heirship, giving certain family members indefeasible claims to a part of the testator's estate. Justifications for limiting the principle of testamentary freedom originate from ethical, philosophical and natural law thoughts, arguing for 'solidarity between generations'.⁶⁸

Looking at freedom of testation from another perspective, more individual and personal, some authors argue that freedom of testation is an aspect of the testator's personality rights. As such, it cannot be detached from an individual, delegated or transferred from another person.⁶⁹ Similarly, others characterise freedom of testation as the manifestation of autonomy, having a considerable effect on the emancipation of the individual.⁷⁰ Therefore, if we share these views and see freedom of testation as another personality right, it could seem somewhat odd that countries that provide more protection for personality rights, in general, restrict freedom of testation more (e.g. Germany). Conversely, countries that arguably, provide less protection for personality rights (e.g. UK and US states) value and protect freedom of testation more.⁷¹ This conclusion could only bring us back to the economic and market rationale in explaining the 'unlimited freedom of testation' in common law countries, giving a little space for personality arguments. Along the same lines, civilian countries limit freedom of testation for similar reasons, economic and social, putting personality rights arguments to one side.

We have briefly defined freedom of testation to relate this general concept to post-mortem autonomy and PMP. This section, however, did investigate details about the laws surrounding freedom of testation, as the conceptual comparisons were the focus of the section. The argument proposed in this book is that freedom of testation should translate to the online environment, where digital assets mainly comprise informational and personal data content. These assets are a counterpart of offline assets and wealth. Therefore,

⁶⁷ 42 (1870) 5 LR QB 549, 563, quoted in *ibid*.

⁶⁸ De Waal (n 63) 15.

⁶⁹ See JC Sonnekus, 'Freedom of testation and the aging testator' in Reid, de Waal and Zimmermann (n 63) 78–99, 79.

⁷⁰ De Waal (n 63) 16; LM Friedman, 'The law of the living, the law of the dead: Property, succession and society' (1966) *Wisconsin Law Review* 340, 355.

⁷¹ See analysis and comparison in Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2).

an individual should be able to exercise their autonomy online and decide what happens to their assets on death. As Bentham puts it in his 'auto-icon' description, 'Every man is his best biographer.'⁷² I agree with this proposition and develop it further in relation to digital assets.

One of the most prominent objections to extending privacy post-mortem (where it has not already been extended, as found by Edwards and Harbinja⁷³) is that the legal life terminates on death and legal personality ceases to exist.⁷⁴ However, as found by Naffine, legal personality is relative and varies from branch of law to branch of law and from legal family to legal family. There is no clear-cut answer as to when legal personality dies.⁷⁵ Legal personality in some cases, such as testamentary freedom, does extend beyond death, even impliedly by allowing a deceased person to control their wealth by the wishes they expressed pre-mortem. Similarly, Simes observes that 'though death eliminates a man from the legal congeries of rights and duties, this does not mean that his control, as a fact, over the devolution of his property has ceased. A legal person he may not be, but the law still permits his dead hand to control.'⁷⁶ Tur is even more critical of the definition of legal personality and its ending on death, arguing that

We do not even have . . . any clear idea of when a legal person comes into being or when he ceases to exist . . . Nor should we regard physical death as marking the termination of legal life, if for no other reason than the existence of a legal will, through which the physically dead person seeks to control the disposition of his property.⁷⁷

⁷² N Naffine, 'When does the legal person die? Jeremy Bentham and the "auto-icon"' (2000) *Australian Journal of Legal Philosophy* 25.

⁷³ Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2).

⁷⁴ Naffine (n 72) states that 'English law proceeds upon the basis that the deceased as a legal person does not survive his physical death.' Paton's *Jurisprudence* is cited as authority for the proposition that 'most modern legal systems lay down the rule that, in cases where legal personality is granted to human beings, personality begins at birth and ends with death'. See O Wood and GL Certoma, *Hutley, Woodman and Wood Succession: Commentary and Materials* (4th edn, Law Book Co 1990) 309. But also 'In the Anglo-American system of law, the dead have neither rights nor duties . . . We may appoint a guardian ad litem to protect the expectant interests of the unborn. There is no guardian ad litem for the deceased because he has no interest.' See L Simes, *Public Policy and the Dead Hand* (University of Michigan Law School 1955) 1.

⁷⁵ Naffine (n 72); also see R Tur, 'The "person" in law' in A Peacocke and G Gillett (eds), *Persons and Personality: A Contemporary Inquiry* (Basil Blackwell 1987) 122.

⁷⁶ Simes (n 74) 1.

⁷⁷ Tur (n 75) 123.

This argument can further be related to Hegel's and Radin's personhood theories of property. Thus, if property is an extension of an individual's personhood and a necessary precondition for its development, then this personhood transcends death in the same way that property does, through a will. Moral rights provide further support for this argument. As a personal aspect of copyright, moral rights extend on the death of a creator, perpetually (e.g. France), as long as the economic rights last, or for a lesser period with an option of waiving these rights (e.g. the UK and the US).⁷⁸ This evidence again supports the proposition that aspects of personality, such as dignity, integrity and autonomy, survive death, sometimes even for an unlimited period, as in France. Therefore, legal personality does extend beyond death, and so should privacy.⁷⁹ Other examples where aspects of personality, autonomy or memory survive death include burials, organ donation and medical confidentiality.⁸⁰ I and other influential authors have considered these examples, so we will not explore them in detail in this book.

(b) Other Influential PMP Scholarship

PMP scholarship has grown significantly in the last decade. Proponents of the legal recognition of this concept have attempted to address some of the most significant objections to PMP, namely the lack of subject and the problematic nature of harm.

Some of the most potent arguments against recognising PMP refer to the lack of actual harm to the individual, that is, the deceased cannot be harmed or hurt.⁸¹ The analysis above rejects this argument and draws an analogy with the option to bequeath one's property. Following a similar line of argument, the deceased should not be interested in deciding what happens to their property on death as they will not be present to be harmed by the allocation. The interests advanced here are not only family and society interests in the distribution of wealth as freedom of testation is upheld to a lesser or greater degree in most systems, even where not congruent with the interests or desires of

⁷⁸ For more details, see Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2) 129.

⁷⁹ Harbinja, 'Post-mortem privacy 2.0' (n 2).

⁸⁰ See T Davey, *Until Death Do Us Part: Post-Mortem Privacy Rights for the Ante-Mortem Person* (PhD thesis, University of East Anglia 2020); E Harbinja, 'Posthumous medical data donation: The case for a legal framework' in J Krutzinna and L Floridi (eds), *The Ethics of Medical Data Donation*, Philosophical Studies Series, vol 137 (Springer 2019) 97–113; E Harbinja and H Pearce, 'Your data will never die, but you will: A comparative analysis of US and UK post-mortem data donation frameworks' (2020) *Computer Law and Security Review* 36.

⁸¹ See for example Beverley-Smith's contention that 'reputation and injured dignity are generally of no concern to a deceased person'. See H Beverley-Smith, *The Commercial Appropriation of Personality* (Cambridge University Press 2002) 124.

heirs or society. I have submitted that users do have interests in what happens after their death and that in the digital realm, this interest is more significant than in the traditional world due to the prominence and volume of personal data disclosed online and the importance of digital assets in creating one's online identity.⁸² Therefore, I have argued that similar notions to testamentary freedom in relation to real-world property should be developed in online environments for digital assets.⁸³

PMP harm has been the subject of a helpful analysis put forward by Davey.⁸⁴ Davey looks at the long-standing principle law and the theory that the dead cannot be harmed due to lack of knowledge and subjectivity. For Davey, 'no harm actually has to occur to the "dead", and lack of knowledge is not an issue, as the harm is to the living whilst alive because of the knowledge that in death her privacy can be invaded'.⁸⁵ Additionally, Davey argues that the protection of post-mortem privacy follows death culture, intuition and the notion of effecting assurances.⁸⁶ Davey then goes on to develop her conception of post-mortem privacy.

In summary, Davey proposed the extension of the protection of privacy afforded by Article 8 of the European Convention on Human Rights and introduced the definition of PMP as 'the right of the person to respect for her private and family life post-mortem'.⁸⁷ Davey contends that this extension of Article 8 could be achieved by using the ECtHR teleological approach to interpretation in the digital age and readiness to extend the scope of Article 8 to a degree in certain other situations.⁸⁸ She also argues that this extension should include 'relational post-mortem privacy'. She builds this aspect of PMP on the harm principle related to the living relatives and refers to some of the recent ECtHR and UK jurisprudence,⁸⁹ 'to include private matters about the deceased which affects the privacy interests of the relatives themselves'.⁹⁰

I accept the suggestion to extend the scope of Article 8 of the ECHR put forward by Davey. It is a valuable contribution to the development of

⁸² Harbinja, 'Post-mortem privacy 2.0' (n 2).

⁸³ Ibid.

⁸⁴ Davey (n 80).

⁸⁵ Ibid. 180.

⁸⁶ Ibid. 225.

⁸⁷ Ibid. 226; European Convention for the Protection of Human Rights and Fundamental Freedoms 1950.

⁸⁸ Ibid. 226. See *Putistin v Ukraine* [2013] ECHR 1154.

⁸⁹ *Dzhugashvili v Russia* [2014] ECHR 1448; *Éditions Plon v France* [2004] ECHR 200; *Lewis v Secretary of State for Health* [2008] EWHC 2196; *Putistin v Ukraine* ECHR 1154; Davey (n 80) 184.

⁹⁰ Davey (n 80) 222.

post-mortem privacy scholarship and law. In particular, I accept arguments of ‘the death culture, intuition and the notion of effecting assurances’⁹¹ as valid underpinnings of the post-mortem privacy that I have also recognised in my earlier work. I also believe that there is a strong argument for the protection of relational post-mortem privacy. However, the limitation of Davey’s theory is the subject of the PMP being the ante-mortem person and the deceased’s surviving relatives. While these are relevant, they do not go far enough. In developing the notion of postmortal privacy, I will demonstrate that the deceased themselves can and should be the subject of protections, that is, their ‘immortal’ persona and their informational body. Regarding surviving relatives, the subjects of relational PMP have not been defined further in Davey’s work. It is not clear who these relatives are, whether they are heirs, next of kin or friends.

Buitelaar has put forward another influential theory.⁹² He aimed to develop a theory that would justify ‘protection for the various forms of post-mortem presence that are likely to subsist in the future’.⁹³ Buitelaar thus endows a person with a ‘digital double’ and states that this post-mortem digital persona should be afforded ‘an appropriate locus in the legal framework that governs the survival or extinction of the rights and duties of subjects’.⁹⁴ In his theory, this digital double is effectively the bearer of the ‘continuation of the privacy rights of the ante-mortem owner’.⁹⁵ The argument develops in that due to the ‘overwhelming persistence of digital persona on the internet without there being a living counterpart’, the post-mortem digital persona should be ascribed the ‘appropriate locus’.⁹⁶

Buitelaar accepts that such a conception of the subject and PMP is beyond the present law. However, he argues that in the future, ‘fundamental human rights need not be limited to the rights of the living human beings’.⁹⁷ Davey accepts these arguments as helpful and forward-looking but adds that ‘unless the nature of “fundamental human rights” changes, they are grounded in foundational values of which dignity and autonomy are uppermost’.⁹⁸ I also find Buitelaar’s arguments convincing, adding a layer of postmortality later in this chapter.

⁹¹ Ibid. 222, 145–80.

⁹² JC Buitelaar, ‘Post-mortem privacy and informational self-determination’ (2017) 19(2) *Ethics and Information Technology* 129.

⁹³ Ibid. 131.

⁹⁴ Ibid. 135.

⁹⁵ Ibid. 139.

⁹⁶ Ibid. 135.

⁹⁷ Ibid. 131.

⁹⁸ Davey (n 80) 124.

More recent research in the area investigates empirical aspects of post-mortem privacy. I myself am part of an ongoing research project looking at, among other things, perceptions, attitudes and practices of PMP amongst individuals, lawyers, companies and regulators/policymakers.⁹⁹

Morse and Birnhack's empirical inquiry represents an exemplary quantitative insight, focusing on Israeli Internet users' approaches and behaviours in managing digital remains.¹⁰⁰ At the time of writing, it is the only investigation of this kind to explore post-mortem privacy issues directly, focusing on the persistence of the privacy paradox after death, that is, the gap between 'people's stated interest in their online privacy and their actual behaviour'.¹⁰¹ The authors surveyed a population sample to better understand perceptions, preferences, and actions to protect users' digital remains and PMP. Findings suggest the existence of a posthumous privacy paradox, where users either wish to deny all access to their digital remains but, in practice, enable partial or full informal access; or they wish to allow only part of this content, but instead enable full access.

The research reveals that the posthumous privacy paradox is a complex phenomenon. Significantly, findings demonstrate the presence of an inverted posthumous privacy paradox. In this case, there is a mismatch between the preferences and behaviour of users who might wish to share their personal data on death with loved ones. However, these wishes are likely to be overridden by 'current policies of online platforms, absence of legal framework and [the user's] own uninformed inaction'.¹⁰² Morse and Birnhack point to several other exciting features of the management of digital remains. For example, even for users aware of data processing systems, there may be a 'lack of technological know-how, as to how to manage one's personal data that would become digital remains'.¹⁰³ Where online tools exist to manage digital remains (as shown later in this book), the authors suggest that users'

⁹⁹ Leverhulme Trust project, 'Modern technologies, privacy law and the dead', 2020–3.

¹⁰⁰ T Morse and M Birnhack, 'The posthumous privacy paradox: Privacy preferences and behavior regarding digital remains' (2020) *New Media and Society* 1.

¹⁰¹ The term 'privacy paradox' was first defined in PA Norberg and DR Horne, 'The privacy paradox: Personal information disclosure intentions versus behaviors' 41(1) (2007) *Journal of Consumer Affairs* 100. However, the gap between people's stated interest in their online privacy and their actual behaviour was first identified in S Spiekermann, J Grossklags and B Berendt, 'E-privacy in 2nd generation e-commerce: Privacy preferences versus actual behavior' in *Proceedings of the 3rd ACM Conference on Electronic Commerce*, Tampa Bay, Florida, 14–17 October 2001 <<https://www.dl.acm.org/doi/10.1145/501158.501163>> last accessed 1 August 2021.

¹⁰² Morse and Birnhack (n 100) 18–19.

¹⁰³ *Ibid.* 6.

reluctance to activate these may also be due to an unwillingness to contemplate their own death. The reluctance to contemplate death is a phenomenon that keeps emerging in investigations of PMP and death studies generally. It has probably been one of the guiding principles of tech companies in deciding not to 'advertise death' and their services for the disposition of digital legacy. It is, however, still an anecdotal argument. Further, Morse and Birnhack argue that users need to be empowered to make decisions about their digital remains, and as such 'a top-down, one-size-fits-all law will frustrate the wishes of large segments of the user population'.¹⁰⁴ This is an essential finding for any future legal framework, and we will reconsider it in the final chapter.

The empirical findings of this study could also provide a comprehensive methodological template for other empirical studies on post-mortem privacy online and then a useful comparator when such a study is completed. It offers potential pathways for other future research, where the focus of study might include users' perceptions of the corporate collection and processing of personal data post-mortem rather than social interaction between people. Given the intricacies and subjective experiences at play with decision-making approaches on digital remains, it is clear that there is also an urgent need for complementary qualitative research to capture the deeper understandings of digital remains management preferences and the social, cultural and legal norms that might influence approaches. Morse and Birnhack suggest utilising Terror Management Theory (TMT) from social psychology to investigate decision-making in the face of death.¹⁰⁵ We will certainly incorporate some of these considerations in the UK inquiry, which I have mentioned above.

(c) *Laws to Date*

Research demonstrates that the US and UK laws, in principle, do not protect PMP.¹⁰⁶ Protection has been awarded by different legal institutions to some aspects of the phenomenon, such as privacy laws, breach of confidence, IP, personality, publicity, defamation, succession, executry and trusts, and data protection. However, this protection is more prominent and encompassing in civil law countries, aiming to protect values such as autonomy, dignity and reputation, especially of the creators.¹⁰⁷ In the English and the US common

¹⁰⁴ Ibid. 19.

¹⁰⁵ See for example J Greenberg and J Arndt, 'Terror management theory' in PAM Van Lange, AW Kruglanski and ET Higgins (eds), *Handbook of Theories of Social Psychology: Volume One* (SAGE 2011).

¹⁰⁶ Harbinja, 'Post-mortem privacy 2.0' (n 2); Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2); Davey (n 80).

¹⁰⁷ Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2) 121.

law systems, the principle has traditionally been *actio personalis moritur cum persona*, meaning personal causes of action die with the person (e.g. defamation claims, breach of confidence claims, wrongful dismissal claims).¹⁰⁸ This principle has been revised by legislation mainly in many contexts for reasons of social policy.¹⁰⁹

PMP is not protected in English law.¹¹⁰ Although in principle, the same could be said for the US,¹¹¹ some traces of PMP protection may be found in individual states' laws. According to the Restatement (Second) of Torts, there can be no cause of action for invasion of privacy of a decedent, except 'appropriation of one's name or likeness'.¹¹² Some states protect so-called publicity rights (rights that usually protect celebrities, but sometimes all individuals' rights to name, image, likeness) post-mortem, up to the limit of seventy years after death.¹¹³

On the other hand, interestingly, US states have been the most active jurisdictions in the past two decades in legislating issues of the transmission of digital assets on death. The initial phase of the digital assets legislation started in 2005, with more than twenty US states having attempted to regulate the area of transmission of digital assets on death over the past ten years. These laws seem to have been inspired by the publicity around the Ellsworth case and similar controversies.¹¹⁴ We will explore this case in detail

¹⁰⁸ *Baker v Bolton* (1808) 170 Eng Rep 1033 (KB).

¹⁰⁹ The principle has been revised in the United Kingdom and now pertains only to causes of action for defamation and certain claims for bereavement. See generally Law Reform (Miscellaneous Provisions) Act 1934, c 41; Race Relations Act 1976, c 74; Sex Discrimination Act 1975, c 65; Disability Discrimination Act 1995, c 50; Administration of Justice Act 1982, c 53.

¹¹⁰ Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2).

¹¹¹ In the Restatement (Second) of Torts (1977), the American Legal Institute takes a stance similar to English law that a person's privacy interest ends upon death. See also *Fasching v Kallinger* 510 A.2d 694, 701 (NJ Super Ct App Div 1986); *Miller v Nat'l Broad Co*, 232 Cal Rptr 668, 680 (Ct App 1986); *Hendrickson v Cal Newspapers, Inc*, 121 Cal Rptr 429, 431 (Ct App 1975).

¹¹² See Restatement (Second) of Torts (1977) § 652I.

¹¹³ For a survey of which states provide for the protection by common and statute law, see Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2) 124. Also, for an interesting proposal of creating publicity rights in Scots law, which would extend beyond death but only if registered pre-mortem for the benefit of the beneficiaries according to the deceased's will, see G Black, *A Right of Publicity in Scots Law* (PhD thesis, University of Edinburgh 2009) 226–38; G Black, *Publicity Rights and Image: Exploitation and Legal Control* (Hart 2011) 160–70.

¹¹⁴ See A Kulesza, 'What happens to your Facebook account when you die?', *Blog* (3 February 2012) <<http://www.blogs.lawyers.com/2012/02/what-happens-to-facebook-account-when-you-die/>> last accessed 1 August 2021; Associated Press release, *justinellsworth.net*

in Chapter 6 related to the disposition of emails. Legislative responses that followed the case were partial and piecemeal rather than comprehensive and evidence-based solutions.¹¹⁵

The answer to this scattered legislation and possible conflicts of law has been an attempt at harmonisation within the US. In July 2012, the US Uniform Law Commission formed the Committee on Fiduciary Access to Digital Assets. The goal of the Committee was to draft an act and/or amendments to Uniform Law Commission Acts (the Uniform Probate Code 1969, the Uniform Trust Code 2000, the Uniform Guardianship and Protective Proceedings Act 2017 and the Uniform Power of Attorney Act 2006) that would authorise fiduciaries to manage and distribute, copy or delete, and access digital assets. Starting from 2012, for Committee meetings, the Uniform Fiduciary Access to Digital Assets Act 2014 (UFADAA) had been drafted and published online on multiple occasions.¹¹⁶ The process included fierce lobbying efforts by the big tech companies (e.g. Google and Facebook), connected through a think tank called NetChoices. The companies even moved on to lobby for a completely different act, which would replace the UFADAA, resulting in the Privacy Expectation Afterlife and Choices Act 2015 (PEAC). The Uniform Law Commission then decided to revise the UFADAA, and incorporate some of the industry concerns and pro-privacy stances, adopting the Revised UFADAA (RUFADAA) in 2015.¹¹⁷

Although this initiative was an attempt to improve and develop the existing statutes aiming to consider the full range of digital assets, there were many open issues that the Committee needed to address when drafting the RUFADAA. For instance, in the Prefatory Note for the Drafting Committee in the February 2013 Draft, the drafters identify the most critical issues to be clarified, including the definition of digital property (s 2) and the type and nature of control that can be exercised by a fiduciary (s 4). It seems that some of the most controversial issues were being disputed within the Committee, such as clarifying possible conflicts between contract and executry law and between heirs, family and friends.¹¹⁸

(21 April 2005) <<https://www.justinellsworth.net/email/ap-apr05.htm>> last accessed 1 August 2021.

¹¹⁵ See AB Lopez, 'Posthumous privacy, decedent intent, and post-mortem access to digital assets' (2016) 24(1) *George Mason Law Review* 183.

¹¹⁶ Ibid.

¹¹⁷ Ibid.

¹¹⁸ E Harbinja, *Legal Aspects of Transmission of Digital Assets on Death* (PhD thesis, University of Strathclyde 2017).

The RUFADAA includes significant powers for fiduciaries regarding digital assets and estate administration. These powers are limited by a user's will and intent expressed in their choice to use online tools to dispose of their digital assets (e.g. Google Inactive Account Manager). The user's choice overrides any provisions of their will. If the user does not give direction using an in-service solution but makes provisions for the disposition of digital assets, the RUFADAA gives legal effect to the user's directions. If the user fails to give any direction, the provider's terms of service (ToS) will apply. The Act also gives the service provider a choice of methods for disclosing digital assets to an authorised fiduciary, under their ToS (i.e. full access, partial access, or a copy in a record). Finally, the Act gives personal representatives default access to the 'catalogue' of electronic communications and other digital assets not protected by federal privacy law (i.e. the content of communication which is protected and can only be disclosed if the user has consented to the disclosure or if a court orders disclosure).

Additionally, the RUFADAA, s 9 aims to resolve the potential violations of criminal and privacy legislation. It also tackles jurisdiction, mandating that the choice of law provisions in ToS do not apply to fiduciaries. Apart from that, the new draft abandoned the digital property notion altogether and left only the digital assets, comprising both the content and the log information (information about electronic communication, the date and time a message has been sent, the recipient's email address).

So far, a vast majority of states have introduced and enacted the RUFADAA.¹¹⁹ Most of these states already had their own digital assets statutes; however, this legislation was not harmonised before the RUFADAA. The Act thus contributed to harmonising divergent laws – at least in the states that enacted it. Notably, California, where the most prominent service providers are based and whose laws apply to the ToS, has not introduced the legislation. It is to be hoped that the Act will achieve wider adoption and application in the individual states or even initiate similar efforts in other countries. An acceptable legal solution for the transmission of personal digital assets will ideally follow the rationale behind the RUFADAA. It should aim to recognise technology to dispose of digital assets as a more efficient and immediate solution online. The solution would also consider technological

¹¹⁹ US Uniform Law Commission, 'Fiduciary Access to Digital Assets Act, Revised (2015): 2018 Introductions & Enactments' <[http://www.uniformlaws.org/Act.aspx?title=Fiduciary%20Access%20to%20Digital%20Assets%20Act,%20Revised%20\(2015\)](http://www.uniformlaws.org/Act.aspx?title=Fiduciary%20Access%20to%20Digital%20Assets%20Act,%20Revised%20(2015))> last accessed 1 August 2021.

limitations, users' autonomy, and the changing landscape of relationships online.¹²⁰

The Uniform Law Conference of Canada followed this approach and enacted a similar act: the Canadian Uniform Access to Digital Assets by Fiduciaries Act 2016 (UADAF).¹²¹ This Act provides a more robust right of access for fiduciaries than the RUFADAA. There is default access to the digital assets of the account holder. In UADAF, the instrument appointing the fiduciary determines a fiduciary's right of access rather than the service provider's. The Canadian Act has a 'last-in-time' priority system, whereby the most recent instruction takes priority over an earlier instrument.

Interestingly, however, a user who already has a will, but nominates a family member or a friend to access their social media account after their death, restricts their executor's rights under the will. This is similar to the US RUFADAA, whereby the deceased's will takes priority in any case, and the difference is in the mechanism. The RUFADAA is more restrictive than the UADAF in honouring ToS without a user's instruction. Service providers are obliged only to disclose the catalogue of digital assets and not the content. This solution is more suitable for the online environment, particularly where assets are intrinsically tied to one's identity (communications, social networks, multiple accounts with one provider such as Google; these create a unique profile and identity of a user).

In the Digital Republics Act 2016, France has adopted a solution quite similar to the RUFADAA.¹²² Article 63(2) of the Act states that anyone can set general or specific directives for preserving, deleting and disclosing their personal data after death.¹²³ These directives would be registered with a certified third party (for general ones) or with the service provider who holds the data (e.g. Facebook and its policy described above). Even though the implementing decree that would operationalise this law has not been adopted yet, it is quite a surprising development that brings the US and French approaches

¹²⁰ E Kasket, 'Access to the digital self in life and death: Privacy in the context of post-humously persistent Facebook profiles' (2013) 10:1 *SCRIPTed* 7, 10; E Kasket, *All the Ghosts in the Machine* (Robinson 2019); N Pennington, 'You don't de-friend the dead: An analysis of grief communication by college students through Facebook profiles' (2013) 37 *Death Studies* 617.

¹²¹ Uniform Law Conference of Canada, Uniform Access to Digital Assets by Fiduciaries Act (2016) <[https://www.ulcc-chlc.ca/ULCC/media/EN-Uniform-Acts/Uniform-Access-to-Digital-Assets-by-Fiduciaries-Act-\(2016\).pdf](https://www.ulcc-chlc.ca/ULCC/media/EN-Uniform-Acts/Uniform-Access-to-Digital-Assets-by-Fiduciaries-Act-(2016).pdf)> last accessed 1 August 2021.

¹²² Loi n° 2016-1321 du 7 octobre 2016 pour une République numérique.

¹²³ For more, see L Castex, E Harbinja and J Rossi, 'Défendre les vivants ou les morts? Controverses sous-jacentes au droit des données post-mortem à travers une perspective comparée franco-américaine' (2018) 4(210) *Réseaux* 117.

to post-mortem privacy closer. This is even odder if we consider the conventional and extremely divergent approaches of these jurisdictions to protecting the personal data of living individuals.¹²⁴

We will not see similar developments in the UK, unfortunately. The Law Commission has recently initiated the reform of the law of wills in England and Wales. Their consultation brief asserts that digital assets ‘fall outside the sort of property that is typically dealt with by a will’¹²⁵ and that digital assets are primarily a matter of contract law and could be addressed in separate law reform. This suggestion fails to future-proof the law of wills as these assets become more common and valuable. In the future, we will see conflicts between wills and the disposition of digital assets online, and this reform is a chance for UK law to show foresight in anticipating these issues and follow good examples in other countries, as explained above. Edwards and I have argued that the Commission should consider digital assets in the ongoing reform to forestall rather than create unclarity and confusion. We will see quite soon whether the Commission will take our suggestion on board and take this opportunity to bring about some clarity in the law.

Regarding other countries that partly protect PMP, Malgieri’s research usefully categorises these regimes into three theoretical scenarios: 1) the ‘data freedom’ or ‘commodification’ scenario; 2) the quasi-propertisation model (IP-like); and 3) the full or weak PMP model.¹²⁶ In the ‘data freedom’ scenario, the data controller can process the deceased’s personal data as they wish on death of the data subject.¹²⁷ English law, explained above, is an example that Malgieri uses to illustrate this scenario. For the second scenario, quasi-property or IP-like, Malgieri uses the example of the former Estonian data protection law, where limited rights of the heirs exist for thirty years post-mortem of the data subject.¹²⁸ He argues that data is treated and inherited in this scenario as ‘(digital) goods or as Intellectual Property rights on intangibles’.¹²⁹ This is limited with moral rights protected in the European IP regime, so full propertisation is impossible. In his last scenario, the post-mortem

¹²⁴ Ibid.

¹²⁵ Law Commission, ‘Making a will’ (Consultation paper 231, 2017) <<https://www.s3-eu-west-2.amazonaws.com/lawcom-prod-storage-11jsxou24uy7q/uploads/2017/07/Making-a-will-consultation.pdf>> last accessed 1 August 2021.

¹²⁶ G Malgieri, ‘R.I.P: Rest in privacy or rest in (quasi-)property? Personal data protection of deceased data subjects between theoretical scenarios and national solutions’ in R Leenes, R van Brakel, S Gutwirth and P de Hert (eds), *Data Protection and Privacy: The Internet of Bodies* (Hart 2018) 143.

¹²⁷ Ibid. 145.

¹²⁸ Ibid. 154.

¹²⁹ Ibid. 155.

privacy one, PMP is protected more or less stringently. Like many other scholars I mentioned above, Malgieri notes the problem of the interested subject that can be harmed, that is, the problem of the ‘interest’, ‘harm’ and the ‘narrator’.¹³⁰

For an intermediate scenario with a weaker PMP, he exemplifies the Italian Data Protection Code (which has implemented Directive 95/46/EC). Article 9(3) of the Code states that the data subject’s rights ‘where related to the personal data concerning a deceased, *may be exercised by any entity that is interested* therein or else acts to protect a data subject or for *family-related reasons* deserving protection’.¹³¹ He further defines this model as a ‘Kantian’ model, where legitimate subjects can act on behalf of the deceased, similar to burial cases in common law systems.¹³² This way, he argues, the problem of the subject has been solved to an extent. The example includes ‘weak’ protections of PMP because the deceased themselves cannot express their directives to process their personal data on death.¹³³ Regarding this scenario, he concludes by saying that this model does not help in the case of conflict between different interested parties, such as family members or heirs.

For the strong PMP protections, Malgieri quotes the French law *Loi pour une République numérique*. In his view, this is the most advanced statute in the area, which has resolved the ‘problem of the subject’ (i.e. the problem of the interest, the harm and the narrator) through advance directives whereby the data subject can preventively express their decisions on the post-mortem processing of their personal data and designate a person that can actively exercise data protection rights, respecting their directives on behalf of the deceased.¹³⁴ The law also includes the distinction between personal data and ‘digital goods’, whereby the heirs can ‘receive communication of *digital goods* or data amounting to family memories, transmissible to the heirs’, unless there is a directive of the deceased that states otherwise.¹³⁵ Further, heirs can have access to digital goods just if there were no directives of the deceased, meaning that ‘personality interests always prevail under the French Law’.¹³⁶ Finally, copyright law still applies, and the heirs can exercise economic and moral rights for works authored by the deceased person, but the deceased can also designate different persons for exercising these rights

¹³⁰ Ibid. 147.

¹³¹ Ibid. 156 (emphasis added by Malgieri).

¹³² Ibid.

¹³³ Ibid.

¹³⁴ Ibid. 148.

¹³⁵ Ibid. 159 (original emphasis).

¹³⁶ Ibid.

in a will.¹³⁷ I have analysed the French law earlier in my work with Castex and Rossi, where we discuss the French pro-PMP regime and its similarities with the US RUFADAA (analogised above) in the effects the laws produce on the protection of PMP.¹³⁸ We conclude that the PMP regime of these two countries is much more approximate than their juxtaposed regimes of the protection of privacy more generally.

A similar example to the French one is the Catalan law (Ley 10/2017) that introduces *voluntats digitals* (digital wills), comparable to the *directives* in the French law. These can be a part of a will or registered in an electronic register. If a person has not written a will or included a stipulation in the electronic register, then ToS or contractual clauses apply between the service provider and the data subject (user).¹³⁹ If the *voluntats digitals* does not explicitly mention the right of the executor to access personal data after the deceased's death, the executor (or the heir) needs a court order to access such data. Unlike French law, Malgieri finds that traditional wills and digital wills are never in conflict here, that is, digital wills can be part of a person's will.¹⁴⁰

Malgieri has looked at several examples of post-mortem privacy legal regimes that were available at the time of his writing. His categorisation is helpful, albeit incomplete. If we were to build on Malgieri's categorisation, we would need to add a purely patrimonial or succession regime that applies to digital assets, including personal data that constitutes a digital account such as a social media account. An example of this regime is in Germany. In a critical case in Germany, Facebook refused to grant access to a deceased girl's Facebook account to her parents, arguing its duties of confidence were solely owed to her. The Court of Appeal in Berlin supported Facebook's stance, but the Federal Court of Justice overturned this decision, relying on the German Civil Code (BGB) and its principle of universal succession (i.e. that heirs step into the deceased's shoes for all their rights and obligations). The Court rejected Facebook's argument that this was a contract of a personal nature and, therefore, rights did not transmit to heirs.¹⁴¹ Edwards and Harbinja find it intriguing, as in common law jurisdictions it has been assumed, without binding precedent, 'that contracts with social media platforms would be of

¹³⁷ Ibid.

¹³⁸ Castex et al. (n 123).

¹³⁹ Malgieri (n 126) 160.

¹⁴⁰ Ibid.

¹⁴¹ Kammergericht, Urteil vom 31. Mai 2017, Aktenzeichen 21 U 9/16 <<https://www.berlin.de/gerichte/presse/pressemitteilungen-der-ordentlichen-gerichtsbarkeit/2017/pressemitteilung.596076.php>> last accessed 30 January 2022; appealed BGH, 12 July 2018, Docket No III ZR 183/17.

such a highly personal nature (the doctrine of *delectus personae* in English law) and therefore rights and duties would both come to an end with the death of the subscriber'.¹⁴² This argument was rejected in the German Facebook case.

Furthermore, Malgieri categorises laws that belong to various areas (data protection, succession and wills, regulation of technologies and IP) under the same umbrella categories. These categories are hardly comparable in such a manner, as they usually overlap and complement each other, even in the same jurisdiction. They also conflict with one another in a given jurisdiction, meaning the categorisation is incomplete unless we have examined a more comprehensive range of laws. For example, certain countries can exclude PMP protection in one area of law and envisage it simultaneously in a different area, albeit impliedly. A clear example of this is the US, analysed further below, where RUFADAA offers implicit protection of PMP, yet privacy and data protection do not extend on death. The situation in the US is further complicated by the fact that each state has different laws on succession, publicity, property and confidential information. It is therefore challenging to consider PMP as a singular phenomenon since it has not been defined in general legal principles or theory. The piecemeal laws are all there is now, so Malgieri's categorisation contributes to further thinking about PMP.

Post-Mortem Data Protection

In addition to the laws investigated above, where implicit explicit recognitions of PMP exist, it is helpful to examine data protection and PMP protection in the EU. This area has changed quite significantly since the introduction of the General Data Protection Regulation (GDPR), despite the GDPR's failure to harmonise it.

Do data protection rights survive one's death? We have investigated the human rights aspect of post-mortem privacy above. We will not turn to investigate data protection law in so far as it applies to the deceased and confers on them or other parties certain rights. Erdos has surveyed the protection of the deceased's personal data in three generations of data protection law in the EU. The first generation data protection law, in the early 1990s, referred to concepts such as 'individual', 'natural person' or 'a person in physical terms', 'rendering it somewhat ambiguous whether the deceased were meant to be directly referred to or not'.¹⁴³

¹⁴² L Edwards and E Harbinja, "Be right back": What rights do we have over post-mortem avatars of ourselves? in L Edwards, B Schafer and E Harbinja (eds), *Future Law: Emerging Technology, Regulation and Ethics* (Edinburgh University Press 2020) 273.

¹⁴³ D Erdos, 'Dead ringers? Legal persons and the deceased in European data protection law' (2021) 40 *Computer Law & Security Review* 13.

The GDPR's predecessor, the Data Protection Directive (DPD), applied only to living individuals, protecting the personal data of 'natural persons'.¹⁴⁴ However, the Directive left discretion in implementation to EU member states to extend this minimum protection, which was guaranteed.¹⁴⁵ Some EU states used this possibility, and their data protection laws offer some kind of post-mortem data protection, limited in its scope and post-mortem duration.¹⁴⁶ McCallig found that twelve states protect the deceased's personal data (Bulgaria, Czech Republic, Denmark, Estonia, France, Italy, Latvia, Lithuania, Portugal, Slovakia, Slovenia and Spain); four states expressly exclude the deceased (Cyprus, Ireland, Sweden and the United Kingdom); ten states refer to personal data of a natural person (Czech Republic, Denmark, France, Italy (both natural and legal person), Latvia, Lithuania, Portugal, Slovakia, Slovenia and Spain) and one state provides a temporal limit for protection of the deceased's personal data (Estonia, thirty years on consent).¹⁴⁷ The rationale behind not protecting the deceased's personal data is the lack of the ability to consent to data processing.¹⁴⁸ Conversely, Erdos finds that nine EEA states include *sui generis* provisions for the deceased's data in national law, with similar levels of protection as found by McCallig.¹⁴⁹ In this generation of data protection law, Ireland, the UK, Sweden and Cyprus establish that online, the living individuals are within data protection laws.¹⁵⁰

The GDPR did not clarify this patchy protection of the deceased's data in the EU. It does not explicitly provide for post-mortem data protection;

¹⁴⁴ Article 2 a) of Directive 95/46/EC of the European Parliament and of the Council of 24 October 1995 on the protection of individuals with regard to the processing of personal data and on the free movement of such data OJ L 281, 23/11/1995 P. 0031–0050 (the Data Protection Directive).

¹⁴⁵ Case C-101/01, *Criminal Proceedings Against Lindqvist* [2003] ECR I-12971, I-13027 (European Court of Justice decision deferring to the national court's resolution of the issue).

¹⁴⁶ Edwards and Harbinja, 'Protecting post-mortem privacy' (n 2) 131, 132.

¹⁴⁷ D McCallig, 'Data protection and the deceased in the EU' (Presentation at the Computer Privacy and Data Protection 2014 Panel: Exploring post-mortem privacy in a digital world, 21–23 January 2014) (on file with the author).

¹⁴⁸ 'Dead persons cannot give consent to use or changes in their personal data or contribute to any balancing of interests which may be required. Rights as data subjects should in general extend only to living individuals, but should be exercisable for a limited period after the death of the data subject by personal representatives.' House of Lords Select Committee on the European Communities, *Report on the Protection of Personal Data* (HMSO 1993).

¹⁴⁹ Erdos (n 143) 14.

¹⁵⁰ *Ibid.*

instead, it delegates regulatory decisions on this issue to the member states.¹⁵¹ Many EU member states have legislated for post-mortem data protection in different forms, while few member states explicitly exclude this protection (e.g. Ireland and Sweden). Erdos has conducted a comprehensive study of data protection laws whose provisions extend on the death of the data subject.¹⁵² He finds that twelve EEA countries have provided protection for the deceased's data in their new data protection acts. This protection varies significantly and includes the following broad types of protection: the extension of the validity of the deceased's consent for a limited time (Estonia); the requirement for a legal basis of processing, including consent by heirs or the extension of or other people with a sufficient legal interest (Slovakia, Slovenia – provided that the deceased has not prohibited this in writing); the extension of all or some data subject rights (France, Italy, Portugal, Spain, Hungary, Bulgaria, Switzerland); and the extension of the application of the data protection law as a whole (Iceland, Denmark). The categorisation is mine, and it is slightly different from the one Erdos has provided.¹⁵³ The UK has retained its previous approach to the deceased's data. The UK Data Protection Act 2018 in s 1 defines personal data as 'data which relate to a living individual', denying any post-mortem rights and following the approach taken in the Data Protection Act 1998. The rationale behind not protecting the deceased's personal data in the UK has historically been the lack of the deceased's ability to consent to data processing.¹⁵⁴ This is not a solid reason, however, since many other countries have found mechanisms to address this issue. As seen above, consent can be expressed pre-mortem, recorded in a will or technology, or given by an heir, personal representative or another party. We will return to this in the final chapter.

3.3 Future Law and Theory: Informational Body, Digital Immortality and Postmortal Privacy

In more recent research, I have begun to develop the notion of PMP further, looking at the notions of informational bodies (a philosophical concept), immortality and postmortal society (sociological concepts), to support the

¹⁵¹ Recital 27 of Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) OJ L 119, 04.05.2016; cor OJ L 127, 23.5.2018.

¹⁵² Erdos (n 143).

¹⁵³ Ibid. 11.

¹⁵⁴ UK House of Lords Select Committee on the European Communities (n 148).

concept of ‘postmortal privacy’.¹⁵⁵ Postmortal privacy is qualitatively different from post-mortem privacy. As seen above, the latter in legal scholarship has relied on the legal conceptions of personality, data protection and privacy, with normative considerations of privacy, autonomy and testamentary freedom. The postmortal privacy framework goes beyond post-mortem privacy and includes protecting the informational body and aspects of digital immortality.

The aim is to consider theories and concepts beyond just digital assets, theories of property, IP and privacy, and to offer a comprehensive framework and more nuanced normative support for future policy and law.¹⁵⁶ The framework, thus, does not apply to the case studies in this book specifically, but it offers grounding for considering digital remains holistically. This theory goes beyond data protection and privacy, as conceived in some of the theories and laws set out in this chapter. It not only includes and protects information and personal data but aims to encompass the entirety of the deceased’s identity and ‘self’, as curated, stored and left behind in the digital realm. Therefore, to be able to understand this complex concept of digital remains and legacy, I have borrowed from the influential philosophical and sociological scholarship.

In the new conception, post-mortem privacy is conceptually building upon Floridi’s notion of the ‘informational body’.¹⁵⁷ According to Floridi, human beings exist through information related to their identity. Thus Floridian ethics maintain that a person has a ‘right to control one’s personal identity . . . an informational structure, constituted by everything that defines this identity’¹⁵⁸ (memories, search history, etc.). Individuals are, essentially, constituted and exist through their own information and thus ‘their personal data are their informational bodies’ so data should be seen as being ‘ours’ as in ‘our body’ as opposed to ‘our car’.¹⁵⁹ This informational body exists for the living and the dead and is applied regardless of a person’s awareness of having their privacy compromised.¹⁶⁰

¹⁵⁵ Harbinja, ‘The “new(ish)” property’ (n 2).

¹⁵⁶ Ibid.

¹⁵⁷ Floridi, ‘Distributed morality’ (n 1); Floridi, *Ethics of Information* (n 1); Floridi, *Fourth Revolution* (n 1).

¹⁵⁸ C Öhman and L Floridi, ‘The political economy of death in the age of information: A critical approach to the digital afterlife industry’ (2017) 27 *Minds and Machines* 639, 650.

¹⁵⁹ Ibid.

¹⁶⁰ Ibid. 651.

Therefore, infringement of informational privacy is an act of aggression to the specific person and humanity and, more generally, 'human dignity'.¹⁶¹ For Floridi, maintaining one's dignity is key to remaining the master of one's existence in the world.¹⁶² Öhman and Floridi argue that 'the dead's informational body continues to have the right to be treated with respect and dignity worthy of human existence even after the end of their physical existence'.¹⁶³ Here, there is also an analogy with the 'protection that the law traditionally offers to the physical body and its integrity post-mortem, as well as the fact that the organic body is not considered property in most legal systems'.¹⁶⁴ If we treat the human body with respect after death, by analogy we should provide the same treatment for the informational body, underpinned by dignity and autonomy. Postmortal privacy protects the integrity and dignity of the informational body.

Moreover, the physical body decays naturally, and the informational body arguably does not as it persists for as long as technology permits it. Parts of this postmortal informational body are dispersed in the digital realm and are more or less easily accessible by many individuals and companies. Here, therefore, we find aspects of immortality, as conceptualised in the sociological and philosophical literature, which we will explore briefly.

Related to preserving one's informational body and identity, Dow examined archival immortality, which includes preserving artefacts related to the self, saved and achieved in totality (letters, emails and digital data).¹⁶⁵ More generally, Jacobsen's conception of 'digitalised immortality' or 'electronic immortality' means that the memory of the deceased can be kept alive through memorial pages; players can restart their lives in games and virtual reality. More remarkably, we could store and transfer neural energy from the deceased, hoping to keep them artificially alive after their physical death.¹⁶⁶ Similarly, Kastenbaum introduces the concept of assisted immortality, posing a philosophical question of whether technologically assisted immortality would be a meaningful form of survival and whether individuals would be willing to use it, if available.¹⁶⁷

¹⁶¹ L. Floridi, 'On human dignity as a foundation for the right to privacy' (2016) 29 *Philosophy and Technology* 307.

¹⁶² Ibid. 310.

¹⁶³ Öhman and Floridi (n 158) 651.

¹⁶⁴ Harbinja, 'The "new(ish)" property' (n 2) 94.

¹⁶⁵ EH Dow, *Electronic Records in the Manuscript Repository* (Scarecrow Press 2009).

¹⁶⁶ MH Jacobsen (ed.), *Postmortal Society: Towards a Sociology of Immortality* (Routledge 2017).

¹⁶⁷ R Kastenbaum, *On Our Way: The Final Passage through Life and Death (Life Passages)* (University of California Press 2004).

Notably, Brown sets out his four pathways to immortality, namely survival of the body, survival of the mind, survival of the genes, and survival of the memes (understood as memories or cultural genes stored and passed on internally and externally through technology).¹⁶⁸ Survival of the memes is enabled by the technological and cultural transmission of memories. For Brown, whether this would count as survival depends on the concept of the self. This concept evolves with time and space, and it could mean different things to different individuals. It depends on whether they identify with their genes, memes, bodies, mind, consciousness, or all of these. Survival of the memes, our memories, or our identity understood by Brown as ‘what we feel counts as ours’ and whether we can identify with our memes in other people does not have to depend on whether ‘in reality’ we survive by these memes.¹⁶⁹ All these considerations Jacobsen usefully labels ‘immortality by proxy’, an umbrella term that encompasses all the different ways of survival, including technology.¹⁷⁰ For this book, digital immortality is immortality reached in the digital realm due to a symbolic proxy or technology.¹⁷¹

In summary, postmortal privacy aims to protect the informational body expressed, stored, mediated and curated through technology (Figure 3.1). This body, consisting of information, memes and data, exists in the digital afterlife or the New Elysium,¹⁷² thus attaining aspects of immortality understood as immortality by proxy. This new concept further solidifies the need to consider very personal identity and dignity interests when drafting policies and laws in this area. It is argued that the concept deserves attention because it offers a comprehensive and future-facing prospect for digital remains. It is based on multidisciplinary arguments and thus provides a solid normative underpinning for law-makers. Finally, it goes beyond a single digital asset and looks at the totality of the digital remains of an individual. The theory will not be used in considering case studies in this book. Instead, it is a novel theoretical perspective underpinning some of the solutions in the final chapter of the book.

Moreover, the theory is applicable to some more recent phenomena of chatbots, deepfakes and other forms of reviving the deceased using their data. MyHeritage is a more recent example of a service offering the creation of deepfakes of the deceased.¹⁷³ If recognised in law, postmortal privacy would

¹⁶⁸ B Brown, ‘Individualised immortality in liquid-modern times – teasing out the topic of symbolic immortality in the sociology of Zygmunt Bauman’ in Jacobsen (n 166) 40.

¹⁶⁹ Ibid.

¹⁷⁰ Jacobsen (n 166).

¹⁷¹ Harbinja, ‘The “new(ish)” property’ (n 2).

¹⁷² Kasket, *All the Ghosts in the Machine* (n 120).

¹⁷³ MyHeritage <<https://www.myheritage.com/deep-nostalgia>> last accessed 1 August 2021.

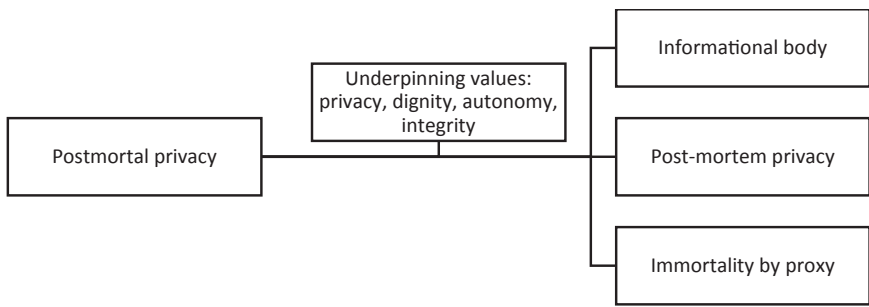


Figure 3.1 Postmortal Privacy¹⁷⁴

help protect the deceased’s remains against unauthorised use of their data and the creation of chatbots and deepfakes. We will consider the exact mechanisms for this in the final chapter.

3.4 Concluding Remarks

The discussion above reviewed the role of autonomy as a value and then discussed how it supports privacy. I follow the pro-autonomy stance of Nissenbaum, Bernal et al. as justification for the hard choices herein favouring users’ rights, rather than those of platforms or families.

Clearly, the law typically recognises a person’s autonomy and, as a connected phenomenon, that person’s right and ability to dispose of their wealth and property. This, however, has arguably not been translated to the online world. As will be shown in greater detail in the case study chapters, neither a user’s rights of ownership over digital assets nor their rights to allocate these assets after death are routinely recognised. It can be argued that in the online world, digital assets are more closely related to privacy interests than in the online world and thus are much more closely related to the personal and autonomy interests of the user. It is therefore argued here that separate from the general consideration of property status and thus transmissibility, testamentary freedom should in principle extend to digital assets created in the online world.

I argue throughout the book for recognition of at least some degree of PMP and the right of an individual to dispose of or control their personal data post-mortem. Of course, like all user interests, PMP rights will need to be balanced with other considerations, including the same privacy interests of others and the social and personal interests in free speech and security, and so on. It is not the ambition of this book to analyse the potential exceptions

¹⁷⁴ Harbinja, ‘The “new(ish)” property’ (n 2) 97.

in more detail. The aim is to discuss if the transmission of personal digital assets on death is justified on doctrinal or theoretical grounds. In discussing this challenging and grey question, this book will take the view that autonomy interests play a vital part and that a framework for recognising PMP, which will assist in the transmission of digital assets on death, is essential. However, the position set out in this chapter is principled, and the practical solution will be discussed more in the last chapter. The counterbalancing of such autonomy and property interests by countervailing interests is a further issue that will be dealt with in my future work.

Admittedly, however, some digital assets might not be so intertwined with the user's privacy, for example a poem written on Facebook or a short story in an email. This would be primarily an IP issue, and the relevant case study chapter suggests appropriate solutions to tackle their transmission.

Finally, I have put forward a novel concept of postmortal privacy, relevant for the totality of one's digital remains, one's postmortal self, existing in and through technology. The concept is less relevant for individual case studies. Instead, it offers a grounding for considering digital remains more comprehensively, especially in the context of digital resurrection, ghostbots, post-mortem deepfakes and other technology that offers ways of reviving the deceased. I will consider this in more detail in my future work.¹⁷⁵

¹⁷⁵ Harbinja et al. (n 4).